



Newcastle-under-Lyme Corporation Act 1964

CHAPTER xi

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ELIZABETH II



1964 CHAPTER xi

An Act to provide for the vesting in the mayor, aldermen and burgesses of the borough of Newcastle-under-Lyme of certain lands in the borough; to provide for the extinction of certain rights therein or thereover; to make further provision for the local government, health and improvement of the borough; and for other purposes.

[10th June 1964]

WHEREAS—

(1) The borough of Newcastle-under-Lyme in the county of Stafford (in this Act referred to as “the borough”) is a municipal borough under the management and local government of the mayor, aldermen and burgesses of the borough (in this Act referred to as “the Corporation”):

(2) By an Act passed in the fifty-sixth year of the reign of His late Majesty King George III intituled “An Act for Inclosing Lands in the Parishes of Newcastle-under-Lyme, Trentham, Woolstanton and Stoke-upon-Trent in the County of Stafford” (in this Act referred to as “the Act of 1816”) certain common lands in the manor of Knutton in the borough and certain other common lands were authorised to be inclosed:

(3) Provision was made in the Act of 1816 for the constitution of a commissioner for setting out, dividing, allotting and inclosing the said lands and for carrying the said Act into execution:

(4) It was further enacted by the Act of 1816 that " the said Commissioner shall allot and set out Eighteen statute acres of waste land on Knutton Heath " (which is in the said manor of Knutton) " unto the Surveyors of the Highways for the Liberty or Township of Knutton aforesaid for the time being, to be for ever held by the said Surveyors for the time being, under such Regulations and Restrictions and to be fenced only in such manner as the said Commissioner by his Award shall direct for the purpose of preserving the same Eighteen Acres of Land at all times untilled, and in a state of Grass or Herbage, and upon Trust to let the same Grass or Herbage, by Auction from time to time ":

(5) Notwithstanding exhaustive investigations no trace has been found of the award of the said commissioner but it is believed that the 18 acres were allotted and set out by the said commissioner and that certain land in the borough which is and for many years past has been vested in the Corporation as the successors to the above-mentioned surveyors of highways comprises the said 18 acres and the said land is in this Act referred to as " the trust land ":

(6) The Corporation have for many years allowed the trust land to be used and let as allotment gardens and to be managed for that purpose by a body of persons constituted by the Corporation or its predecessors many years ago and commonly known as the Trustees of the Silverdale Trust Lands:

(7) In the circumstances hereinbefore recited it is expedient for the removal of all doubts that the trust land should by this Act be formally vested in the Corporation:

(8) It would be of public and local advantage to develop the trust land for housing and other purposes and it is accordingly expedient that any regulations, restrictions, rights or trusts which may subsist in or over or attach to the trust land by virtue of the Act of 1816 or of any award made thereunder should be extinguished and that the trust land should be used for housing or other purposes:

(9) It is expedient that the right of the Corporation to continue to deal with the trust land as heretofore, pending user for housing purposes or appropriation for other purposes, should be regulated and confirmed as provided by this Act:

(10) It is further expedient that in so far as any persons be found to have acquired any private rights of way or other easements over the trust land the Corporation shall have power to extinguish the same on payment of compensation as in this Act provided:

(11) It is expedient to make further provision with reference to the local government, health and improvement of the borough and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

(12) It is expedient that the other provisions contained in this Act be enacted:

(13) The purposes of this Act cannot be effected without the authority of Parliament:

(14) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

(15) A plan showing the trust land and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of that land were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the county council of the administrative county of Stafford which plan and book of reference are in this Act respectively referred to as the deposited plan and book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Newcastle-under-Lyme Corporation Act 1964. Short and collective titles.

(2) The Newcastle-under-Lyme Corporation Act, 1937, and this Act may be jointly cited as the Newcastle-under-Lyme Corporation Acts, 1937 and 1964.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Streets.

Part IV.—Sanitation and buildings.

Part V.—Burial grounds.

Part VI.—Miscellaneous.

Part VII.—General.

PART I
—cont.
Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90, 110 and 343 of the Public Health Act, 1936, have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1816 ” means the Act passed in the fifty-sixth year of the reign of His late Majesty King George III intituled “ An Act for Inclosing Lands in the Parishes of Newcastle-under-Lyme, Trentham, Woolstanton and Stoke-upon-Trent in the County of Stafford ” ;

“ the Act of 1936 ” means the Public Health Act, 1936;

“ the Act of 1959 ” means the Highways Act, 1959;

“ the borough ” means the borough of Newcastle-under-Lyme;

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ daily fine ” means a fine for each day on which an offence is continued after conviction;

“ enactment ” includes an enactment in this Act, or in any general or local Act and any order, byelaw or regulation for the time being in force within the borough;

“ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;

“ the Minister ” means the Minister of Housing and Local Government;

“ the town clerk ” means the town clerk of the borough;

“ the tribunal ” means the Lands Tribunal;

“ the trust land ” means the land delineated on the deposited plan and described in the deposited book of reference.

(3) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART II

LANDS

4. Subject to the provisions of section 8 (Saving for National Coal Board) of this Act as from the passing of this Act all such regulations, restrictions, rights or trusts (if any) as immediately before the passing of this Act subsisted in or over or attached to the trust land by virtue of the Act of 1816 or of any award made thereunder are hereby extinguished.

Extinguish-
ment of
rights over
trust land.

5. Subject only to the interests of the tenants of the allotment gardens situate thereon or on some part thereof and to such easements as may be subsisting thereover, and subject to the provisions of section 8 (Saving for National Coal Board) of this Act, the trust land is hereby vested in the Corporation in fee simple and the Corporation may exercise in reference thereto the powers which they may exercise with reference to land acquired by them for housing purposes:

Vesting of
trust land in
Corporation.

Provided that the Corporation may from time to time appropriate and use the whole or any part thereof for other purposes.

6.—(1) Notwithstanding the provisions of the last foregoing section and without making any appropriation as is therein mentioned but subject to the provisions of this section the Corporation shall for a period of 20 years from the passing of this Act (or for such other period as may be agreed between the Corporation and the trustees) permit the part of the trust land numbered 6 on the deposited plan (being land not immediately required by the Corporation for housing or other purposes) to be used and let by the trustees as allotment gardens and for that purpose to be managed by the trustees.

As to user
of part of
trust land for
allotments.

(2) Any tenancy of any part of the trust land for use as an allotment garden under this section shall be a tenancy to which section 1 of the Allotments Act, 1922, applies and shall be terminable in accordance with the provisions of that section as if any contract of tenancy relating to the part or parts so let contained the powers of re-entry referred to in subsection (1) of that section and at the termination of any such tenancy section 2 of that Act shall apply.

(3) The net rents received by the trustees in respect of any such tenancies as are hereinbefore mentioned in this section shall be applied—

(a) In paying such reasonable remuneration to the trustees as the Corporation shall from time to time determine;

PART II
—cont.

(b) Subject as aforesaid, in effecting such repairs and improvements to the trust land or any part thereof as the Corporation after consulting the trustees shall from time to time authorise;

(c) Subject as aforesaid, as the primary fund for the payment of any compensation lawfully payable to the tenants of allotment gardens on the termination of such tenancies as hereinbefore provided.

(4) So often as the Corporation shall after the expiration of the period or periods referred to in subsection (1) of this section require to enter for housing or other purposes on any part of the trust land which is for the time being let as an allotment garden the Corporation shall give notice thereof to the trustees specifying in such notice the lands on which the Corporation require so to enter and on receipt of such notice the trustees shall forthwith take all such steps as may be necessary to terminate any tenancy or tenancies affecting such land so as to enable the Corporation to enter thereon.

(5) For the purpose of this section the trustees shall not be more than six nor less than three in number and, for the purpose of ensuring the continuity of that body, the provisions of section 36 of the Trustee Act, 1925, shall apply save only that no new trustee shall be appointed under that section without the written consent of the Corporation being given to such appointment.

(6) In so far as the trustees shall in the execution of their functions under this section be put to any expense or reasonably incur any costs the same shall be repaid to the trustees by the Corporation on demand.

(7) In this section “the trustees” means the body of persons commonly known as the Trustees of the Silverdale Trust Lands being the persons referred to as the trustees in an agreement dated the 14th March, 1962, made between Frank Woosey, William Cartwright, Val Nicholson Rowley, George Henry Handy and Fanny Rebecca Deakin of the one part and the Corporation of the other part, or other the trustees for the time being appointed in pursuance of subsection (5) of this section.

Extinction
of private
rights of way.

7.—(1) Any private right of way or other easement subsisting over the trust land or any part thereof shall, if the Corporation so resolve and give notice of their resolution to the owner of the right, be extinguished as from the expiration of one month from the service of the notice.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be assessed and determined in case of dispute in accordance with the Land Compensation Act, 1961.

PART II
—cont.

8. Nothing in this Part of this Act shall operate to vest in the Corporation any coal or mines of coal or ironstone lying beneath the surface of the trust land or affect or prejudice the rights, powers and immunities preserved or conferred by the sections of the Act of 1816 of which the marginal notes are “ Saving of Mines to His Majesty within the Copyhold parts of the Common Fields ” and “ Saving of Mines and Manorial Rights in and over Knutton Wastes ” so far as the same are now vested in the National Coal Board and relate to the working of any mines and minerals by underground methods including the power in so working to let down the surface of the trust land.

PART III

STREETS

New streets

9.—(1) Where a plan and sections of a new street have been deposited with the Corporation in pursuance of new street byelaws and have been approved by them, no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts, or in some other suitable manner, the approved line, width and level of so much of the street as abuts on any land which will be occupied as the site of, or in connection with, the building.

Prohibition
of building
until street
defined.

(2) Where the approved width of a new street has been defined as aforesaid, no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.

(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a fine not exceeding twenty pounds; and the Corporation may—

(a) in the case of a contravention of subsection (1), define as aforesaid the approved line, width and level of the new street; and

(b) in the case of a contravention of subsection (2), remove the building or structure;

and in either case recover the expenses of so doing from that person.

PART III
—cont.Prohibition
of building
until street
formed and
sewered.

10.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed, and the street has been sewered, in accordance with the said byelaws:

Provided that, where the plan shows that the street will exceed 100 yards in length, the Corporation shall divide the street for the purpose of the notice into lengths not exceeding 100 yards; and each such length shall for that purpose be treated as a separate street.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of such a notice he shall be liable to a fine not exceeding twenty pounds; and the Corporation may construct the carriageway and works of sewerage which should have been constructed, and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

(5) The execution of any works under the provisions of this section shall not relieve any person from any liability under any enactment relating to private street works for the time being in force in the borough.

*Protection and repair of streets*Retaining
walls.

11.—(1) In this section “retaining wall” means a wall which—

- (a) serves, or is intended to serve, as a support for earth or other material on one side only; and
- (b) does not form part of a permanent building;

and this section applies to any length of a retaining wall, being a length—

- (i) any cross-section whereof is wholly or partly within 12 feet of a street in the borough; and
- (ii) which is at any point of a greater height than 6 feet above the level of the ground at the boundary of the street nearest that point.

(2) After the passing of this Act no length of a retaining wall to which this section applies shall be erected otherwise than in accordance with plans, sections and specifications approved by the Corporation; and if any person erects any such length of a wall in contravention of this subsection he shall be liable to a fine not exceeding five pounds.

(3) Any person aggrieved by the refusal of the Corporation to approve any plans, sections and specifications submitted to them in pursuance of the last foregoing subsection may appeal to a magistrates' court.

(4) If any length of a retaining wall to which this section applies—

(a) is in such disrepair as to be liable to endanger persons using the street; or

(b) having been erected before the passing of this Act or erected in contravention of subsection (2) of this section, is so constructed as to be liable as aforesaid;

the Corporation may by notice to the owner or occupier require him to execute such work as may be necessary to prevent its being liable as aforesaid; and the provisions of section 290 of the Act of 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) The provisions of this section shall not apply to a retaining wall erected on land belonging to any railway undertakers so long as that land is used by those undertakers primarily for the purposes of their railway undertaking or to a retaining wall erected by the Minister of Transport on a trunk road.

12.—(1) If a person erects, or permits to be erected, over the Awnings over footway of a street in the borough, being a highway maintainable footways. at the public expense, an awning which—

(a) projects over any part of the footway which is less than 2 feet from the carriageway; or

(b) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding five pounds.

An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience.

PART III
—cont.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) In this section “awning” includes a blind, shade or other covering.

Miscellaneous

Trees, grass
verges and
gardens.

13.—(1) Subject to the provisions of this section the Corporation shall have power, in any street vested in them, or on any land acquired by them for the purpose of the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

- (a) to plant trees or shrubs or place containers in which to grow trees or shrubs;
- (b) to attach containers for plants to posts or standards provided by the Corporation or, with the consent of the owner thereof, to any other posts or standards;
- (c) to plant flowers and other vegetation on or between any pillars or walls provided by the Corporation;
- (d) to lay out grass verges or gardens;
- (e) to provide guards or fences, and otherwise do anything expedient, for the maintenance or protection of such trees, shrubs, containers, flowers, vegetation, grass verges or gardens;
- (f) to cut down any such tree or shrub, to remove any such container, guard, fence, flowers or vegetation, and to abolish any such grass verge or garden, or enlarge or diminish the area thereof;
- (g) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle or vehicles to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any garden so laid out;
- (h) by notice to prohibit the playing of any game on any such grass verge as aforesaid which is likely to cause damage thereto.

(2) Any such notice as is referred to in paragraph (g) of the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge or garden to which it relates; and if any person contravenes a notice so posted he shall be liable to a fine not exceeding five pounds.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(4) Section 82 of the Act of 1959, shall cease to apply to highways vested in the Corporation or to any such land as is referred to in subsection (1) of this section; and anything done by the Corporation under that section or under section 1 of the Roads Improvement Act, 1925, with respect to such highways or land before the passing of this Act shall be deemed to have been done under this section.

(5) Nothing in this section shall affect the duty of the Corporation to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(6) (a) Where the Corporation carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

14.—(1) The Corporation may, on the occasion of any public Decorations festivity, cause flag-poles and pylons to be erected in any street in streets. in the borough for the purpose of displaying decorations, and may for that purpose provide sockets or slots in, or under the surface of, any such street.

(2) If any person wilfully removes or damages a flag-pole, pylon, socket or slot erected or provided under this section, he shall be liable to a fine not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport or in any street belonging to or repairable by any railway undertakers without the consent of those undertakers.

PART III

—cont.

For protection
of certain
statutory
undertakers.

15. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

- (1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) in relation to the electricity board or the generating board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by either of such undertakers;

(b) in relation to the gas board mains pipes or other apparatus belonging to or maintained by that Board;

and includes any works constructed for the lodging therein of apparatus;

“ the electricity board ” means the Midlands Electricity Board;

“ the gas board ” means the West Midlands Gas Board;

“ the generating board ” means the Central Electricity Generating Board;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means the electricity board, the generating board and the gas board or any of them, as the case may be:

- (2) For the purposes of section 9 (Prohibition of building until street defined) of this Act, land shall not be deemed to be occupied as the site of or in connection with a building by reason only of the existence of apparatus in such land:
- (3) Nothing in section 10 (Prohibition of building until street formed and sewered) of this Act shall prevent the undertakers from beginning to erect or proceeding with the erection for the purposes of their undertaking of apparatus (including an electricity substation pressure governor or meter house) on land abutting on any new street before such new street is constructed or sewered in accordance with new street byelaws:

- (4) Nothing in section 13 (Trees, grass verges and gardens) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge or garden:

Provided that in exercising such rights the undertakers shall not cause or permit, except in case of necessity, horses or vehicles to enter upon any such verge which is maintained in an ornamental condition or mown, or any garden:

- (5) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the said powers shall be so exercised as not to render unreasonably inconvenient the access to any apparatus—

Section 13 (Trees, grass verges and gardens);

Section 14 (Decorations in streets):

- (6) (a) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, by the President of the Institution of Civil Engineers on the application of either party after giving notice in writing to the other party;
- (b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus.

16.—(1) In this Part of this Act—

Interpretation
of Part III.

“new street byelaws” has the meaning assigned to it by subsection (4) of section 157 of the Act of 1959;

“structure” means a wall, fence, hoarding or similar erection; but for the purpose of this definition “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof, whichever is the earlier, began.

PART IV

SANITATION AND BUILDINGS

Sanitary
conveniences
for persons
employed on
construction
work.

17.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations in the borough, or in or upon the construction or reconstruction of any works therein, within such time as may be specified in the notice—

- (a) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon, and
- (b) where the workpeople employed thereon comprise both men and women, to provide as aforesaid for men and women separately,

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works—

- (i) to which section 127 of the Factories Act, 1961, applies, or
- (ii) at any mine or quarry within the meaning of the Mines and Quarries Act, 1954.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Power to
order
alteration of
domestic
chimneys.

18.—(1) If a magistrates' court is satisfied upon a complaint by the Corporation that any smoke, gas or vapour from a chimney, flue or pipe of a building or structure forming part of, or within the curtilage of, a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance, the court may make an order requiring the owner of the chimney, flue or pipe, within such time as may be specified in the order—

- (a) to cause it to be raised to a height so specified; or
- (b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order need not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

PART IV
—cont.

PART V

BURIAL GROUNDS

19.—(1) The Corporation may agree with any person, in consideration of the payment of a sum by him, to maintain, for a period fixed by the agreement, a grave or tombstone in a burial ground or crematorium provided by the Corporation. Agreements to maintain graves and tombstones.

(2) In this section—

“ burial ground ” includes a cemetery;

“ grave ” includes a grave space, niche or urn;

“ tombstone ” includes a monument or other memorial of a deceased person.

20.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power— Extension of power to maintain burial grounds.

(a) to put, and keep, in order any tombstone or memorial therein;

(b) to level any grave therein;

(c) to remove any tombstone or memorial on any grave therein, or any railings surrounding any grave therein or any such tombstone or memorial;

(d) to alter the position of any such tombstone, memorial or railings.

(2) Before exercising a power conferred by paragraphs (b), (c) or (d) of the foregoing subsection the Corporation shall—

(a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;

(b) display a notice thereof in a conspicuous position in the burial ground; and

(c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains

PART V
—cont.

are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any tombstone, memorial or railings removed under this section, unless claimed and removed by the person claiming it or some other person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a tombstone is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each tombstone or memorial taken from the burial ground under this section containing—

- (a) a copy of any inscription on it; and
- (b) if it is intended to preserve the tombstone or memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

PART V
—cont.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any tombstone, memorial or railings for whose removal such a faculty or licence was obtained.

(9) In this section—

- “ burial ground ” includes a cemetery;
- “ grave ” includes a grave space;
- “ tombstone ” includes a kerb.

21.—(1) In this section—

For pro-
tection of
Common-
wealth War
Graves
Commission.

“ the Commission ” means the Commonwealth War Graves Commission;

“ Commonwealth war burial ” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 20 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947 the Corporation shall—

- (a) not later than the date upon which such notice is first published in a newspaper circulating in the borough serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 20;
- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 20;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification as the case may be.

(3) The Corporation shall not in pursuance of the powers of the said section 20 remove any tombstone or other memorial

PART V
—cont.

placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;
- (c) that in the case of any tombstone placed or erected by the Commission over any such grave such tombstone shall be removed only in accordance with such arrangements and in such manner including disposal of the tombstone as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 20 the Corporation shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

PART VI

MISCELLANEOUS

Notice of
street
processions.

22.—(1) No procession shall pass through the streets of the borough unless written notice stating the route by which, and the date and time on and at which, it will pass has been delivered at the office of the town clerk, and at the principal police station in the borough, by midday on the day next but one before the date stated, treating as not an intervening day a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning.

(2) If a procession passes through the streets of the borough in contravention of the foregoing subsection, or by a route, or at a time, other than that stated in the notice delivered with respect thereto under that subsection, any person organising or conducting the procession shall be liable to a fine not exceeding ten pounds.

(3) In this section "procession" means any public or ceremonial procession or any circus procession or procession of wild animals:

PART VI
—cont.

Provided that nothing in this section shall apply to a public or ceremonial procession habitually held.

23.—(1) If a person for the purposes of obtaining for himself or another person—

False
statements
to obtain
rent rebates,
etc.

- (a) the tenancy or occupation of a house belonging to, or at the disposal of, the Corporation; or
- (b) a grant, loan, allowance or other payment by or on behalf of the Corporation; or
- (c) a reduction of a rent, rate, charge, or other payment due or to come due to the Corporation;

knowingly or recklessly makes, or permits to be made, to the Corporation or to any committee of the council or member of the council or employee of the Corporation a statement which is false in a material particular about his, or that other person's, needs or means, he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

(2) Where the making of a false statement for any of the purposes aforesaid is an offence under any enactment other than the Perjury Act, 1911, it shall not be an offence under this section.

(3) The court by which a person is convicted of an offence under this section may by the conviction adjudge him—

- (a) to repay to the Corporation a sum not exceeding the amount of the grant, allowance or other payment not being a loan obtained by means of the false statement;
- (b) to pay to the Corporation a sum not exceeding the difference between any reduced payment accepted by the Corporation in faith of the false statement and the payment which the Corporation would otherwise have accepted.

PART VII

GENERAL

24.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

PART VII
—cont.

(2) Subsections (2) to (5) of section 290 of the Local Government Act, 1933, shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

**Restriction
on right to
prosecute.**

25. The written consent of the Attorney General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

Appeals.

26.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution, no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action.

**Protection of
members and
officers of
Corporation
from personal
liability.**

27. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

**Application
of general
provisions of
Public Health
Act, 1936.**

28.—(1) The sections of the Act of 1936 mentioned in Part I of the schedule to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following Parts of this Act that is to say:—

Part III (Streets);

Part IV (Sanitation and buildings).

29. The following provisions of the Newcastle-under-Lyme Corporation Act, 1937, are hereby repealed:—

PART VII
—cont.

Repeal.

Section 68 (Power to place fences near school entrances &c.);

Section 70 (As to pavement lights);

Section 75 (As to barriers in streets);

Section 77 (Provisions as to forecourts);

Section 79 (As to erection of retaining walls);

Section 80 (Power to order alteration of chimneys);

Section 82 (Sanitary conveniences for workmen engaged on buildings);

Section 84 (Apportionment to frontagers of expenses of sewer constructed under public highway);

Section 85 (Apportionment to frontagers of expenses of construction of sewer before land became a street);

Section 86 (Provisions applicable to the two last preceding sections);

Section 87 (Improper construction or repair of water-closet or drain);

Section 93 (Information to be furnished in case of notifiable disease);

Section 94 (Compensation to persons for ceasing employment to prevent spread of disease).

30. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

31.—(1) The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation.

Costs of
Act.

(2) The Corporation shall have power without the consent of any sanctioning authority to borrow the sum requisite for the

PART VII
—*cont.*

payment of the said costs, charges and expenses and shall repay all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the date of borrowing.

(3) The provisions of Part IX of the Local Government Act, 1933, so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS III AND IV OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

Table of Statutes referred to in this Act

Title or short title	Session and chapter
An Act for Inclosing Lands in the Parishes of Newcastle-under-Lyme, Trentham, Woolstanton and Stoke-upon-Trent in the County of Stafford	56 Geo. III c. xxxiii.
Public Health Act, 1875	38 & 39 Vict. c. 55.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Perjury Act, 1911	1 & 2 Geo. 5 c. 6.
Allotments Act, 1922	12 & 13 Geo. 5 c. 51.
Trustee Act, 1925	15 & 16 Geo. 5 c. 19.
Land Charges Act, 1925	15 & 16 Geo. 5 c. 22.
Roads Improvement Act, 1925	15 & 16 Geo. 5 c. 68.
Law of Property (Amendment) Act, 1926 ...	16 & 17 Geo. 5 c. 11.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Newcastle-under-Lyme Corporation Act, 1937	1 Edw. 8 & 1 Geo. 6 c. lxxv.
Minister of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6 c. 31.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Mines and Quarries Act, 1954	2 & 3 Eliz. 2 c. 70.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.
Factories Act, 1961	9 & 10 Eliz. 2 c. 34.
Town and Country Planning Act, 1962 ...	10 & 11 Eliz. 2 c. 38.

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